SYNOPSIS AND LIST OF DATES

The petitioner being the owner of certain lands comprised in Jigala Village, Attibele Hobli, Anekal Taluk, Bangalore Rural District, has formed a residential layout on his lands by obtaining permission for conversion thereof for non-agricultural purpose and after obtaining the needed approval from the Bangalore Metropolitan Rural Development Authority – which is a statutory body functioning in the State of Karnataka. He purchased certain lands which were abutting the lands belonging to him – the said lands being the subject matter of the writ proceedings from which this Special Leave Petition has arisen. Whereas, he purchased the lands on 21.4.2006 and 27.4.2006 respectively, the Karnataka Housing Board, which is a statutory functionary under a State Law issued a Preliminary Notification on 13.7.2006, proposing to acquire the land in question without however, the names of the petitioner being reflected in the said notification and also without any housing scheme being sanctioned by the Government for any such acquisition. On 14.10.2006 yet another Preliminary Notification was issued which also did not reflect the name of the petitioner as the owner, occupier or as a person interested in the lands so notified. One of the properties involved in the present petition was purchased by him for valuable consideration on 19.11.2007, and the said land has been fully developed, similarly, as yet another land which is also the subject matter of this petition. The 3rd Preliminary Notification was issued on 30.1.2008 which also was similarly infected by the same vitiating factors as the two other notifications mentioned above. It resulted in a final notification dated 15.3.2008, without, however,

considering the cogent and convincing objections that the petitioner had submitted in response to the preliminary notifications mentioned above. He therefore, filed a writ petition on 30.7.2008 challenging the said notifications and seeking a consequential direction that his objections to the Preliminary Notifications be considered by the authorities objectively and dispassionately.

On 9.7.2010 a learned single judge of the Hon'ble High Court of Karnataka, dismissed the said petition as meritless.

The petitioner had availed the services of a legal practitioner/advocate for filing and arguing the said writ petition in W.P. No.10522/2008 (LA-KHB). It is, however, singularly unfortunate and lamentable that the factum of the dismissal of he writ petition had not been communicated to the petitioner for long and hence, he having ascertained from the office of the court about the petition having been dismissed several months ago, obtained a certified copy of the order of the learned single judge, with the help of a counsel by name K. Srinivas, and preferred an intra-court appeal from the said order of the learned single judge.

The period of limitation for a writ appeal under Section 4 of the Karnataka High Court Act, 1961, being 30 days from the date of the order concerned, excluding the time consumed for obtaining a certified copy of the relevant order, the writ appeal from which this Special Leave Petition has arisen was belated, the same having been filed by the petitioner on 4.7.2013. There was an thus an inadvertent and unavoidable delay of 1061 days in preferring the said appeal alongwith which an application (I.A. No.1/2013) seeking condonation of delay in filing the appeal had also been filed supported by the affidavit of the petitioner.

Having been called upon to get an affidavit from the counsel who had represented him in the writ petition, the petitioner requested the said counsel for the same. He furnished his affidavit which was also filed in support of the application for condoning the delay in filing the intra-court appeal.

The Division bench which heard the application for condonation of delay in filing the appeal has dismissed the said application, and consequently the appeal as well, without entering upon the merits of the said appeal. Aggrieved thereby this Special Leave Petition is preferred, without brooking any delay on the part of the petitioner.

LIST OF DATES:

21.4.2006	The petitioner purchased two items of lands shown in the writ appeal as Item No.2 and Item No.3.
27.4.2006	The petitioner purchased the land shown as Item No.5 and even developed the land shown as Item No.4.
13.7.2006	A preliminary notification was issued, proposing to acquire the properties of the petitioner, without, however reflecting his name in the said notification.
14.10.2006	A similar defective notification was issued, proposing to acquire the lands in question.

19.11.2007	The petitioner purchased the property shown as Item No. 5 and developed even Item No.1 of the said property.
30.1.2008	Yet another preliminary notification, vitiated by the same illegalities, was issued.
15.3.2008	A final notification for acquisition was issued.
30.7.2008	The petitioner questioned the notification dated 15.3.2008 and sought for a writ of mandamus for consideration of his objections to the preliminary notification.
9.7.2010	A learned single judge of the Hon'ble High Court dismissed the writ petition in W.P. No.10522/2008 (LA-KHB) preferred by the petitioner.
4.7.2013	An intra-court writ appeal in W.A. No.4064/2013 (LA-KHB) was filed by the petitioner questioning the dismissal of the writ petition. Alongwith with the writ appeal an application for condonation of delay in filing the said appeal was also filed.

8.11.2014	The petitioner filed yet another affidavit in support of the application for condonation on delay.
8.11.2014	The same day Sri. Vishnu Hegde, Advocate M/s. Lex Scientia, who had appeared in the writ petition as the petitioner's counsel also filed an affidavit.
25.2.2015	The writ appeal has been summarily dismissed, declining to condone the delay of 1061 days in filing the said writ appeal and holding that the reasons stated by the petitioner and his counsel would not constitute sufficient ground to condone the delay.
4.2015	Aggrieved thereby, this Special Leave Petition is presented.

IN THE SUPREME COURT OF INDIA AT NEW DELHI

(Order XVI Rule 4(1)(a)
(Civil Appeal Jurisdiction)

Special Leave Petition

(Under Article 136 of the Constitution of India)

With prayer for interim relief

Special Leave Petition (Civil) No. /2015

In the matter of :-

Sri. K. Boopathy,
aged 53 years,
s/o. late Keshavalu Naidu,
R/o. Door No.56, 1st Floor,
Gold Towers,
No.50, Residency Road,
Bangalore- 560 025,
Karnataka State Petitioner

And:-

1. The Government of Karnataka,
represented by its Chief Secretary,
Vidhana Soudha,
Dr. Ambedkar Veedhi,
Bangalore- 560 001

2. The Karnataka Housing Board,
Cauvery Bhavan,
K.G. Road,
Bangalore – 560 001,
represented by its Commissioner

3. The Deputy Commissioner,
Bangalore Rural District,
Bangalore- 560 001

4. The Special Land Acquisition Officer,
The Karnataka Housing Board,
Cauvery Bhavan,
K.G. Road,
Bangalore- 560 001 Respondents

MEMORANDUM OF PETITION FOR SPECIAL LEAVE UNDER ARTICLE 136 OF THE CONSTITUTION OF INDIA FROM THE FINAL ORDER DATED 25.2.2015 PASSED BY THE DIVISION BENCH OF THE HON'BLE HIGH COURT OF KARNATAKA, BENGALURU IN W.A. No. 4064/2013 (LA-KHB)

To,

The Hon'ble Chief Justice of India,
and his Companion Justices of the
Hon'ble Supreme Court of India,
New Delhi.

The humble petition of the petitioner above named

1. MOST RESPECTFULLY SHOWETH AS FOLLOWS:-

That this Special Leave Petition is directed against the judgment dated the 25.2.2015 passed by a Division Bench of the Hon'ble High Court of Karnataka, Bangalore, in Writ Appeal No. 4064/2013 (LA-KHB), whereby the said appeal has been dismissed by declining to condone the delay in filing the

said appeal and without entering upon the merits of the appeal. ,

2. QUESTIONS OF LAW :-

(i) Whether the impugned judgment is in consonance with law and justice when the said judgment states, interalia, that "there is nothing to show that an attempt was made by the lawyer to communicate the disposal of the writ petition", and "if really the advocate had intimated, atleast he would have applied for obtaining the certified copy of the order passed by the learned Single Judge"?

(ii) Whether the approach to the case on hand, as reflected in the impugned judgment is not opposed to the law laid down by this Hon'ble Court in the following cases:

1. Ministry of Works and Housing Vs Mohinder Singh 1996 (6) SCC page 229.

2. The State of Uttar Pradesh Vs. Harish Chandra 1996 (9) SCC page 309

3. Narmada Bachau Andolan Vs. Union of India and others - 2010 S.C.C. page 664.

4. State of Tamilnadu Vs. Vedachalam 2001 (9) SCC page 744

5. State of Bihar Vs. Khameshwar Prasad
   2000 (9) SCC page 94.

6. M/s. Dheri Rohtas Light Railway Company Vs. District Board, Bhojpur and others
   1992 (2) SCC page 598.

7. State of Nagaland Vs. Lipoc (ao)
   2005 (3) SCC page 752

8. Executive Officer, Antiyur Town Panchayat Vs. Armugam – 2015 (3) SCC page 569.

in which rulings it has interalia, been laid down that when technicalities of law and substantial justice are pitted against one another the cause of justice order preferred to technicalities; and, for the mistake of a lawyerm a litigant should not be made to suffer?

(iii) Whether, in the wake of the findings contained in paragraph 6 of the impugned judgment that "there was nothing to show that any attempt was made by the lawyer to communicate the disposal of the writ petition and that "if really the advocate had intimated the same, atleast he would have applied for obtaining a certified copy of the order of the learned single judge", the Division Bench is justified in

declining to condone the delay in filing the appeal, that too, without notice to the respondents?

(iv) Whether, the findings contained in paragraph 7 of the impugned judgment that the reasons stated by the petitioner and the affidavit filed by the counsel "did not constitute sufficient grounds to condone the delay in filing the appeal" tenable in law, and in the facts and circumstances of the case?

3. DECLARATION IN TERMS OF RULE 4(2) :-

The petitioner states that no other petition seeking leave to appeal has been filed by him previously, against the judgment questioned in this Special Leave Petition.

4. DECLARATION IN TERMS OF RULE 6 :-

The Annexures P1 to_____ produced with the Special Leave Petition are all true copies of the documents which formed part of the records of the case in the High Court from the judgment of which court the present Special Leave Petition has arisen.

5. GROUNDS :-

Leave to appeal is sought by the petitioner, on the following grounds.

I Because the impugned judgment is not in consonance with law and justice, particularly when the impugned judgment states interalia, that "there is nothing to show that an attempt was made by the lawyer to communicate the disposal of the writ petition", and "if really the advocate had intimated, atleast he would have applied for obtaining the certified copy of the order passed by the learned Single Judge".

II. Because, the approach to the case on hand as reflected in the impugned judgment is grossly opposed to the law laid down by this Hon'ble Court in the following cases:

1. Ministry of Works and Housing Vs Mohinder Singh 1996 (6) SCC page 229.

2. The State of Uttar Pradesh Vs. Harish Chandra 1996 (9) SCC page 309

3. Narmada Bachau Andolan Vs. Union of India and others - 2010 S.C.C. page 664.

4. State of Tamilnadu Vs. Vedachalam 2001 (9) SCC page 744

5. State of Bihar Vs. Khameshwar Prasad 2000 (9) SCC page 94.

6. M/s. Dheri Rohtas Light Railway Company Vs. District Board, Bhojpur and others
1992 (2) SCC page 598.

7. State of Nagaland Vs. Lipoc (ao)
2005 (3) SCC page 752

8. Executive Officer, Antiyur Town Panchayat Vs. Armugam – 2015 (3) SCC page 569.

in which it has, interalia, been laid down that when technicalities of law and substantial justice are pitted against one another, the cause of justice ought to be preferred to technicalities; and, for the mistake of a lawyer, a litigant should not be made to suffer.

III Because, in the wake of the findings contained in paragraph 6 of the impugned judgment that there was "nothing to show that any attempt was made by the lawyer to communicate the disposal of the writ petition" and "that if really the advocate had intimated the same, atleast he would have applied for obtaining a certified copy of the order of the learned single judge", the Division Bench is not justified in declining to condone the delay in filing the appeal, that too, without notice to the respondents.

IV. Because, the findings contained in paragraph 7 of the impugned judgment that the reasons stated by the petitioner

and the affidavit filed by the counsel did not constitute sufficient grounds to condone the delay in filing the appeal are not tenable in law, and in the facts and circumstances of the case.

6. GROUNDS FOR INTERIM RELIEF :-

I. Though, in the intra-court appeal from which this Special Leave Petition has arisen, no interim relief had been sought by the petitioner, it has become necessary for him to seek an interim relief from this Hon'ble Court in the changed circumstances of the case that, taking advantage summary-rejection of the appeal, the nature and characteristic of the lands in question are being hurriedly changed by the 2nd respondent which has sought to form a layout on the said lands and even to put up superstructures thereon.

II. The petitioner has been in the lawful and khas possession of the lands in question, notwithstanding the acquisition proceedings.

III. If on account of such overt acts of the 2nd respondent, any equity would be pleaded by it, at a later date, the same would have an adverse impact and effect on the petitioner, who, for the said reason respectfully prays that this Hon'ble Court be pleased to grant an interim relief, as prayed for herein.

7. MAIN PRAYER :-

It is, therefore, most respectfully prayed that this Hon'ble Court graciously be pleased to :-

a) GRANT Special Leave to appeal from the final judgment dated 25.2.2015 passed by a Division Bench of the Hon'ble High Court of Karnataka, Bangalore, in Writ Appeal No. 4064/2013 (LA-KHB);

and

b) PASS such other or further orders, as this Hon'ble Court may deem just and proper, in the facts and circumstances of the case, including the award of the costs of the proceedings althrough, and, in the interest of justice and equity.

8. PRAYER FOR INTERIM RELIEF :-

It is, therefore, most respectfully prayed that this Hon'ble Court, be graciously pleased to:

(a) ***grant*** an interim order that the respondents shall not in any way, alter the nature and characteristics of the lands which are the subject matter of the proceedings

from which this petition has arisen, and that, status-quo as to the position thereof be maintained;

and

(b) ***pass*** such other order or orders which this Hon'ble Court may deem fit and proper, in the interest of justice.

New Delhi
Date:

Advocate for the Petitioner

IN THE SUPREME COURT OF INDIA

CIVIL APPELLATE JURISDICTION

SPECIAL LEAVE PETITION (CIVIL) Nos. /2015

IN THE MATTER OF:

Sri. K. Boopathy Petitioner

Versus

The Government of Karnataka and three others Respondents

AFFIDAVIT

I, K. Boopathy, aged 53 years, s/o. late Keshavalu Naidu, R/o. Door No.56, 1st Floor, Gold Towers, No.50, Residency Road, Bangalore- 560 025, Karnataka State, do hereby solemnly affirm and state on oath as follows:-

1. I am the petitioner in the above mentioned Special Leave Petition and as such I am fully conversant to the facts of the case.

2. The contents of the Synopsis and List of dates (B to…….), the Special Leave Petition paras 1 to 8 and IAs respectively have been read by me carefully and I have understood the same, and I state that the facts stated herein are true to the best of knowledge and belief.

3. The Annexures annexed with the SLP are true copies of their respective originals.

DEPONENT

Bangalore
Date: 10.4.2015

No.of corrections
Identified by me
Advocate

VERIFICATION

Solemnly affirmed and signed before me on this day of 10th April, 2015, that the contents of this affidavit having been read over by me and admitted to be true and correct to the best of my knowledge and beliefs.

DEPONENT

Verified at Bangalore on this day of 10th April 2015.

IN THE SUPREME COURT OF INDIA

CIVIL APPELLATE JURISDICTION

SPECIAL LEAVE PETITION (CIVIL) Nos. /2015

IN THE MATTER OF:

Smt. Kausalya Bai Petitioner

Versus

The Union of India and others Respondents

AFFIDAVIT VERIFYING THE SPECIAL LEAVE PETITION

I, Smt. Kausalya Bai, aged 53 years, w/o. Sri. Late Samarth Singh, working as Farash, Office of All India Radio, Madikeri, Karnataka, resident of Door No.1025, Bogadi 1st Main/Cross, New Bogadi, Mysore, now at Bangalore, do hereby solemnly affirm and state on oath as follows:-

1. I am the petitioner in the Special Leave Petition and as such I am fully conversant to the facts of the case.

2. The contents of the Synopsis and List of dates (B to…….), the Special Leave Petition paras 1 to 8 and IAs respectively have been read by me carefully and I have understood the same, and I state that the facts stated herein are true to the best of knowledge and belief.

3. The Annexures annexed with the SLP are true copies of their respective originals.

DEPONENT

Bangalore
Date: 12.2.2015

VERIFICATION

Solemnly affirmed and signed before me on this day twelfth day of February 2015 that the contents of this affidavit having been read over to me in Kannada Language known to me and are admitted to be true and correct to the best of my knowledge and belief.

DEPONENT

Verified at Bangalore on this twelfth day of February, 2015